

BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

CHINA UNITED LINES, LTD. ,

Complainant,

v.

AMAZON.COM SERVICES LLC;
AMAZON LOGISTICS INC.; AND BEIJING
CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondent.

Docket No.: 25-04

**CHINA UNITED LINES, LTD.'S REPLY TO RESPONDENTS' OPPOSITION TO
CHINA UNITED LINES LTD.'S MOTION FOR ORDER INSTRUCTING AMAZON TO
REMOVE ATTORNEYS' EYES ONLY DESIGNATIONS**

Respondents Amazon.com Services, LLC, Amazon Logistics, Inc., and Beijing Century Joyo Courier Service Co.'s (“Amazon”), Opposition misrepresents material facts, mischaracterizes legal standards, and discusses issues entirely beyond the scope of China United Lines, Ltd's (“China United”) Motion for Order Instructing Amazon to Remove Attorneys' Eyes Only Designations (the “Motion”). Amazon is not entitled to litigate the merits of its case by discovery motion, nor can it ignore the stipulations it entered into with China United, and then blame China United for failing to comply. China United's Motion is proper—procedurally and substantively—and Amazon's contentions otherwise should receive no countenance. China United submits this Reply to correct Amazon's errors and in support of its simple request to remove 109 Attorney's Eyes Only (“AEO”) designations of stale, third party information from 2022 and 2023. For the reasons, that follow, Amazon's Opposition should be disregarded and the Motion granted.

First, Amazon's refusal to lift AEO designations based on its purported view of the merits of this case is wholly improper in the context of a *discovery* dispute between the Parties. Amazon argues at length that China United is not entitled to de-designation because it previously claimed that Amazon entered into the service contract at issue with the intent of obtaining lower shipping rates and then terminating the contract without paying liquidated damages if market shipping rates fell. Accordingly, Amazon argues any third party container line information is irrelevant and counsel for China United need not be allowed to share such information with China United. Amazon's position is unfounded. China United brought the Motion based on the provisions of the Parties' Stipulated Protective Order (Docket No. 34) (the "Protective Order"), which, as discussed in more detail below, sets forth the precise procedures for designating and challenging document designations. Nowhere in the Protective Order does Amazon receive carte blanche to litigate its case by discovery motion, let alone in response to a motion challenging confidentiality designations. Moreover, even if a discovery motion were a proper venue to address the merits of this case, the Presiding Officer confirmed in her June 6 Order that China United had stated a claim for violation of Section 41102(a) "based on the allegations of the amended complaint." Order Partially Granting Motion to Dismiss, Docket No. 23, at 12. **China United is entitled to discovery on the full breadth of its Section 41102(a) claim, based on the allegations of the amended complaint, which are not limited to fraudulent inducement. China United is entitled to discover whether other carriers who offered lower rates than China United may have breached similar non-disclosure terms with Amazon, but with no repercussions from Amazon because their rates were deemed advantageous for Amazon. This theory is fully supported by the allegations in the amended complaint and is thus properly the subject of ongoing fact discovery.**

Moreover, Amazon's assertion that China United failed to meet and confer prior to filing the Motion is false. Amazon references the Parties' Protective Order *no less than ten times* in its Opposition. Despite citing to the Protective Order where convenient for its position, Amazon chose to omit the meet and confer procedure the Parties agreed to for challenging a confidentiality designation. **Concerningly, Amazon also chose to redact China United's correspondence, which references the same.** Since Amazon now represents that China United failed to comply with its meet and confer obligations, a reproduction of the Protective Order here is warranted, to set Amazon's mischaracterizations straight. Paragraphs 11 through 13 of the Protective Order state, in full:

11. Any Party who objects to any designation of material as "Confidential" or "attorneys eyes only," or who requests further limits on disclosure may object at any time that is consistent with the then-operative Scheduling Order in this Proceeding.
12. The Party Challenging the designation must **object with particularity and give a complete explanation by letter** to the Producing Party's outside counsel of record in the Proceeding.
13. **If the challenging Party and the Producing Party are unable to resolve the challenge**, then the Producing Party may move the ALJ for a protective order or **the objecting Party's counsel may move the ALJ to challenge the designation**.

Protective Order, Docket No. 34, at 6 (emphasis added). China United explicitly complied with each of these provisions prior to filing the Motion. On November 6, 2025, China United provided Amazon with a letter objecting with particularity to its Attorneys' Eyes Only ("AEO") designations and explaining why such designations were unwarranted given the Protective Order. Cullinane Decl., ¶ 3, Ex. A. In the letter, China United expressly referenced the Protective Order and availed itself of Paragraphs 11-13, above. Cullinane Decl., ¶ 3, Ex. A at 1 (stating that if Amazon refused to remove AEO designations China United would "seek relief from Judge

Wirth, pursuant to paragraph 13 of the Confidentiality Stipulation” and “pursuant to paragraph 12 of the same, this letter will serve as China United Lines, Ltd.’s (“CUL”) challenge to these designations and redactions.”) **Amazon failed to respond until November 17, and only after China United followed up by email, twice.** Cullinane Decl., ¶ 4, Exs. B-D. **Amazon replied that it would not lift the AEO designations.** Cullinane Decl., ¶ 4, Exs. B-D. In so stating, Amazon made its position clear and Paragraph 13 of the Protective Order empowered China United to file the Motion. However, China United chose to meet and confer further, renewing its request for de-designation on November 19, and explaining, “[t]here is a process set forth in the confidentiality agreement, and we are following it.” Cullinane Decl., ¶ 5, Ex. E at 1 (emphasis added). Amazon redacted this portion of China United's email, in what appears to be an attempt to diminish China United's efforts to resolve the Parties' dispute informally, and to obfuscate China United's compliance with the Protective Order. *Compare* Longstreth Decl., Ex. E at 3, *with* Cullinane Decl., Ex. E at 1. **Amazon replied to this subsequent email on November 21, again refusing to lift the AEO designations.** Cullinane Decl., ¶ 6, Ex. F at 1-2. At this point, there was nothing more China United could do, short of filing the Motion—Amazon's position was unequivocal and further meet and confer discussions would clearly prove fruitless. China United indicated as much in response, and noted the issue was ripe for adjudication by Judge Wirth. Cullinane Decl., Cullinane Decl., ¶ 6, Ex. F at 1. China United has acted in compliance with the Protective Order, in filing the Motion when it did. China United's position is further in line with federal caselaw on meet and confer requirements. *See, e.g., Kidwiler v. Progressive Paloverde Ins. Co.*, 192 F.R.D. 193 (N.D. W. Va. 2000) (letter from plaintiff's counsel to defendant's counsel, stating that it was an attempt to avoid filing a motion to compel and specifically identifying problem areas, met the requirement to confer prior to filing a

motion, since further conferral efforts "would not likely have been successful in resolving this discovery dispute"); *McCulloch v. Hartford Life & Acc. Ins. Co.* 223 F.R.D. 26, 32 (D. Conn. 2004) (letters between parties regarding ongoing discovery disputes satisfied meet and confer requirement prior to filing motion). Accordingly, there is no basis for Amazon to assert China United failed to meet and confer.

Amazon makes light of the above correspondence, unilaterally deeming it “not meaningful,” and chastising China United for not discussing the AEO designations during a separate meet and confer teleconference. Amazon is not the arbiter of what constitutes a “meaningful” meet and confer, and even so, the Protective Order has no such prerequisite to challenge a confidentiality designation before the Presiding Officer. Indeed, all the Protective Order requires is that the Parties be “unable to resolve the challenge,” following a letter discussion. Protective Order, Docket No. 34, at 6. Had Amazon sought a different procedure, it should have proposed one. China United made no error in filing its Motion and China United respectfully requests the Presiding Officer grant it.

Dated this 25th day of December, 2025.

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PROOF OF SERVICE

**China United Lines, Ltd. v. Amazon.com, et al.
Case No. 2504**

On December 25, 2025, I served true copies of the following document described as **CHINA UNITED LINES, LTD.'S REPLY TO RESPONDENTS' OPPOSITION TO CHINA UNITED LINES LTD.'S MOTION FOR ORDER INSTRUCTING AMAZON TO REMOVE ATTORNEYS' EYES ONLY DESIGNATIONS** on the interested parties in this action as follows:

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I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 25, 2025, at Costa Mesa, California.



David P. Collins